

STATE OF OKLAHOMA

1st Session of the 60th Legislature (2025)

HOUSE BILL 1123

By: Bashore

AS INTRODUCED

An Act relating to broadband; amending Section 3, Chapter 229, O.S.L. 2022 (74 O.S. Supp. 2024, Section 9202), which relates to the broadband governing board; modifying certain funding source; amending Section 10, Chapter 229, O.S.L. 2022 (74 O.S. Supp. 2024, Section 9209), which relates to the state broadband grant program; deleting State Broadband Grant Program Revolving Fund; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY Section 3, Chapter 229, O.S.L. 2022 (74 O.S. Supp. 2024, Section 9202), is amended to read as follows:

Section 9202. A. 1. There is hereby created until June 30, 2028, the Broadband Governing Board. The Board shall oversee the Oklahoma Broadband Office. Effective June 30, 2028, the Board shall terminate. The Board shall utilize the year prior to the termination date for the purpose of ceasing the Board's affairs.

2. The Board shall receive regular reports from the Office's Executive Director and the Executive Director's staff on the status

1 of the Statewide Broadband Plan, the State Broadband Grant Program,  
2 other developed grant programs, and other projects the Office is  
3 undertaking, during regularly scheduled meetings.

4 B. The Board shall consist of nine (9) members. Two members  
5 shall be appointed by the Speaker of the Oklahoma House of  
6 Representatives, two members shall be appointed by the President Pro  
7 Tempore of the Oklahoma State Senate, three members shall be  
8 appointed by the Governor, one member shall be the Lieutenant  
9 Governor, and one member shall be the State Treasurer. Except as  
10 provided in subsection C of this section, appointees shall serve  
11 until June 30, 2028. No individual with an official affiliation,  
12 paid or unpaid, with any potential recipient of a grant administered  
13 under the provisions of this act, shall be appointed to or serve on  
14 the Board.

15 C. Each appointee shall serve at the pleasure of his or her  
16 appointing authority and may be removed or replaced without cause.

17 D. 1. The Board shall hold an organizational meeting not later  
18 than thirty (30) days from the effective date of this act. At such  
19 meeting, the Board shall adopt qualifications and a salary range for  
20 an Executive Director for the Oklahoma Broadband Office based on the  
21 recommendations of the Human Capital Management Division of the  
22 Office of Management and Enterprise Services, and provide for the  
23 process of filling the position in a reasonable time in accordance  
24 with the laws of this state.

1        2. The Board shall hold meetings as necessary at a place and  
2 time to be fixed by the Board. The Board shall elect, at its first  
3 meeting, one of its members to serve as chair and another of its  
4 members to serve as vice-chair. At the first meeting in each  
5 calendar year thereafter, the chair and vice-chair for the ensuing  
6 year shall be elected. Special meetings may be called by the chair  
7 or by five members of the Board by delivery of written notice to  
8 each member of the Board. A majority of members serving on the  
9 Board shall constitute a quorum of the Board.

10        E. If a Board member is unable to fulfill his or her term for  
11 any reason, the appointing authority of such member may appoint a  
12 replacement to complete the remainder of the term.

13        F. The Board shall be subject to the Oklahoma Open Meeting Act  
14 and the Oklahoma Open Records Act.

15        G. The Board shall employ, evaluate, and maintain an Executive  
16 Director of the Office who shall serve at the pleasure of the Board  
17 and may be removed or replaced without cause.

18        H. The Board shall promulgate rules as necessary to implement  
19 the provisions of the Oklahoma Broadband Expansion Act and for the  
20 governance and operation of the Oklahoma Broadband Office.

21        I. The Board shall approve or disapprove all grant and  
22 incentive programs created by the Office under the provisions of  
23 this act or under law.  
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1 J. The Board shall oversee the annual budget for the Office,  
2 which shall be funded from the allowed administrative expenses of  
3 applicable federal programs and funds available for expenditure ~~from~~  
4 ~~the State Broadband Grant Program Revolving Fund created pursuant to~~  
5 ~~Section 10 of this act.~~

6 K. The Board shall approve the Statewide Broadband Plan and  
7 updates to the Plan as necessary.

8 SECTION 2. AMENDATORY Section 10, Chapter 229, O.S.L.  
9 2022 (74 O.S. Supp. 2024, Section 9209), is amended to read as  
10 follows:

11 Section 9209. A. The Office, with the participation and advice  
12 of the Broadband Expansion Council and approval from the Board,  
13 shall establish the State Broadband Grant Program. The Program  
14 shall include development of competitive grants to be awarded to  
15 applicants seeking to expand access to broadband Internet services  
16 in this state, focusing on areas considered unserved and underserved  
17 by the FCC. The Office, Council, and Board shall examine best  
18 practices in other states to facilitate the framework of the  
19 Program. The Office shall administer the Program.

20 B. No grants shall be developed or awarded under the provisions  
21 of this program that would duplicate existing broadband Internet  
22 services in this state.

23 C. In the administration of the grant program authorized by  
24 this section, the Office shall secure service testing data to ensure

1 grant recipients provide the service or services proposed by such  
2 recipients when applying for such grants.

3 D. All grant awards authorized pursuant to the provisions of  
4 this section shall include a clawback provision. For purposes of  
5 this subsection, a "clawback provision" shall mean a condition  
6 precedent to participate in the program whereby a grant recipient  
7 formally agrees to reimburse the program all or part of a grant  
8 award upon the failure of the recipient to fulfill contract terms  
9 included in the grant award.

10 ~~E. There is hereby created in the State Treasury a revolving~~  
11 ~~fund for the Office to be designated the "State Broadband Grant~~  
12 ~~Program Revolving Fund". The revolving fund shall be a continuing~~  
13 ~~fund, not subject to fiscal year limitations, and shall consist of~~  
14 ~~all monies designated for deposit to said fund. All monies accruing~~  
15 ~~to the credit of said revolving fund are hereby appropriated and may~~  
16 ~~be budgeted and expended by the Office for purposes of awarding~~  
17 ~~grants by and through the Office pursuant to subsection A of this~~  
18 ~~section and for the operating expenses of the Office.~~

19 SECTION 3. This act shall become effective November 1, 2025.  
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